

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 5-00-026

WASTE DISCHARGE REQUIREMENTS
FOR
WINDFLOWER POINT HOMEOWNERS ASSOCIATION
LOS BREZ'S PARK MUTUAL WATER COMPANY
LAKE COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. The Board, on 12 August 1988, adopted Order No. 88-148, which prescribed requirements for Los Brez Park and Paul Dennett to discharge from an extended aeration plant to spray irrigation and/or a seepage trench.
2. The Windflower Point Homeowners Association, dba Los Brez's Park Mutual Water Company, is the owner of the wastewater system and is responsible for the operation of the facility.
3. The Windflower Point Homeowners Association and Los Brez's Park Mutual Water Company are hereafter jointly referred to as "Discharger".
4. The Discharger discharges up to 15,000 gallons per day (gpd) of treated effluent from an extended aeration plant to a subsurface seepage trench.
5. An open space irrigation area, consisting of a hillside adjacent to the package plant site, is designated as a recycled water irrigation area. This area may receive treated and disinfected effluent for the purposes of irrigation.
6. Windflower Point and Los Brez's Park are in Section 3, T13N, R8W, MDB&M, with surface water drainage to Clear Lake.
7. Order No. 88-148 is not consistent with current plans and policies of the Board.
8. The beneficial uses of Clear Lake are municipal, industrial, and agricultural supply; recreation; aesthetic enjoyment; ground water recharge; fresh water replenishment; hydroelectric power generation; navigation; and preservation and enhancement of fish, wildlife and other aquatic resources.
9. The beneficial uses of the underlying groundwater are municipal, industrial, and agricultural supply.

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10. The Board adopted a Water Quality Control Plan, Fourth Edition, for the Sacramento River Basin and San Joaquin River Basin (hereafter Basin Plan), which contains water quality objectives for all waters of the Basin. These requirements implement the Basin Plan.
11. The Basin Plan encourages reclamation.
12. The action to update waste discharge requirements for this facility is exempt from the provisions of the California Environmental Quality Act (CEQA), in accordance with Title 14, California Code of Regulations (CCR), Section 15301.
13. This discharge is exempt from the requirements of Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste, as set forth in Title 27, California Code of Regulations (CCR), Division 2, Subdivision 1, Section 20005, et seq. (hereafter Title 27). The exemption, pursuant to Section 20090 (b), is based on the following:
 - a. The Board is issuing waste discharge requirements, and
 - b. The discharge complies with the Basin Plan, and
 - c. The wastewater does not need to be managed according to 22 CCR, Division 4.5, Chapter 11, as a hazardous waste.
14. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
15. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 88-148 is rescinded and the Windflower Point Homeowners Association, dba Los Brez's Park Mutual Water Company, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. The direct discharge of wastes or recycled water to surface waters or surface water drainage courses is prohibited.

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2. The bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous', as defined in Sections 2521(a) of Title 23, CCR, Section 2510, et seq. (hereafter Chapter 15), or 'designated', as defined in Section 13173 of the California Water Code, is prohibited.
4. The grazing of milking animals used to produce unpasteurized milk for human consumption is prohibited on the designated recycled water irrigation area.

B. Discharge Specifications:

1. Neither the treatment nor the discharge shall cause a nuisance or condition of pollution as defined by the California Water Code, Section 13050.
2. The average daily dry weather discharge from the treatment plant shall not exceed 15,000 gallons.
3. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment, recycled water irrigation, or wastewater disposal areas.
4. The treatment and storage facilities shall be designed, constructed, operated and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
5. Treatment plant effluent shall not have a pH less than 6.5 or greater than 8.5.
6. The discharge shall not cause degradation of any water supply.
7. Public contact with wastewater shall be precluded from the wastewater treatment plant and designated recycled water irrigation area through such means as fences, signs, and other acceptable alternatives.
8. The delivery and use of recycled water shall be in conformance with the reclamation criteria contained in Chapter 3, Division 4, Title 22, California Code of Regulations (Title 22), or amendments thereto, for food crop irrigation; fodder, fiber, and seed crop irrigation; landscape irrigation; and impoundment supply.

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9. The effluent from the treatment facility storage reservoir to the designated recycled water spray irrigation distribution system shall not exceed the following limits:

<u>Constituent</u>	<u>Units</u>	<u>Monthly Average</u>	<u>Monthly Median</u>	<u>Daily Maximum</u>
BOD ₅ ¹	mg/l	40		80
Suspended Solids	mg/l	30		60
Settleable Solids	ml/l	0.2		0.5
Total Coliform	MPN/100ml		23	240

¹Five-day, 20°C biochemical oxygen demand (BOD).

10. There shall be no standing water in the disposal or recycled water irrigation areas 48 hours after wastewater is applied.
11. Areas irrigated with recycled water shall be managed to prevent breeding of mosquitoes. More specifically,
- Tail water must be returned, and applied irrigation water must infiltrate completely within a 48-hour period.
 - Ditches not serving as wildlife habitat should be maintained free of emergent, marginal, and floating vegetation.
 - Low-pressure and unpressurized pipelines and ditches accessible to mosquitoes shall not be used to store recycled water.
12. Recycled water for irrigation shall be managed to minimize erosion, runoff, and movement of aerosols from the disposal areas.
13. Direct or windblown spray shall be confined to the designated recycled water spray irrigation area(s) and prevented from contacting drinking water facilities.
14. The Discharger may not spray irrigate recycled water during periods of precipitation and for at least 24 hours after cessation of precipitation, or when winds exceed 30 mph.

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15. The discharge shall remain within designated disposal and recycled water irrigation areas at all times.
16. Signs with proper wording of sufficient size shall be placed at areas of access and around the perimeter of all areas used for effluent disposal to alert the public of the use of recycled water.
17. Storm water runoff from the irrigation areas shall not be discharged to any surface water drainage course within 48 hours of the last application of recycled water.
18. Application of recycled water to the designated recycled water irrigation area shall be at reasonable rates considering the crop, soil, climate, and irrigation management system. The nutrient loading of the reclamation areas, including the nutritive value of organic and chemical fertilizers and of the recycled water shall not exceed the crop demand.
19. There shall be no impoundment of recycled water, recycled water irrigation or biosolids application within 500 feet of any domestic water well, or within 100 feet of any irrigation well unless it is demonstrated to the satisfaction of the Executive Officer that less distance is justified.

C. Sludge Disposal:

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with Consolidated Regulations for Treatment, Storage, Processing, or Disposal of Solid Waste, as set forth in Title 27, CCR, Division 2, Subdivision 1, Section 20005, et seq. and approved by the Executive Officer.
2. Any proposed change in sludge use or disposal practice from a previously approved practice shall be reported to the Executive Officer and U.S. Environmental Protection Agency (EPA) Regional Administrator at least 90 days in advance of the change.
3. Use and disposal of sewage shall comply with existing Federal and State laws and regulations, including permitting requirements and technical standards included in 40 CFR 503.

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If the State Water Resources Control Board and the Regional Water Quality Control Boards are given the authority to implement regulations contained in 40 CFR 503, this Order may be reopened to incorporate appropriate time schedules and technical standards. The Discharger must comply with the standards and time schedules contained in 40 CFR 503 whether or not they have been incorporated into this Order.

D. Groundwater Limitations:

The discharge, in combination with other sources, shall not cause underlying groundwater to contain waste constituents in concentrations statistically greater than background water quality, except for coliform. For coliform, increases shall not cause the most probable number of total coliform organisms to exceed 2.2/100 ml over any 7-day period.

E. Provisions:

1. The Discharger shall comply with the Monitoring and Reporting Program No. 5-00-026, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements", dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
3. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.
4. At least **90 days** prior to termination or expiration of any lease, contract, or agreement involving disposal or designated water recycling irrigation area or off-site reuse of effluent, used to justify the capacity authorized herein and assure compliance with this Order, the Discharger shall notify the Board in writing of the situation and of what measures have been taken or are being taken to assure full compliance with this Order.
5. At least **60 days** prior to the Discharger's intent to reactivate and use the designated recycled water irrigation system, the Discharger shall notify the

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Board in writing of the situation and of what measures have been taken or are being taken to rehabilitate the system and assure full compliance with this Order.

6. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
7. A copy of this Order shall be kept at the discharge facility for reference by operating personnel. Key operating personnel shall be familiar with its contents.
8. If recycled water is used for construction purposes, it shall comply with the most current edition of "Guidelines for Use of Reclaimed Water for Construction Purposes". Other uses of recycled water not specifically authorized herein shall be subject to the approval of the Executive Officer and shall comply with Title 22.
9. The Board will review this Order periodically and will revise requirements when necessary.

I, GARY M. CARLTON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 28 January 2000.

GARY M. CARLTON, Executive Officer

AMENDED

SKC:BC

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 5-00-026

FOR
WINDFLOWER POINT HOMEOWNERS ASSOCIATION
LOS BREZ'S PARK MUTUAL WATER COMPANY
LAKE COUNTY

The Discharger shall record the following with regards to spray irrigation and the seepage trench:

<u>Parameter</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Inflow	gallons/day	Measured	Daily
Discharge to seepage trench	gallons/day	Measured	Daily
Discharge to designated recycled water irrigation area	gallons/day	Measured	Daily

RECEIVING WATER MONITORING

A visual observation of the Discharger's wastewater treatment facility and disposal area(s) shall be made each day during normal working hours to determine if there is any runoff from the confines of district property to surface drainage courses. A log shall be maintained as follows - discharge to surface drainage courses: **Yes or No**. If a discharge occurs, the Discharger shall immediately notify the Board. Total coliform sampling of the spill shall be conducted and the results submitted in a written spill report.

RECYCLED WATER MONITORING

Samples shall be collected prior to the discharge of treated and disinfected wastewater from the storage reservoir to the designated recycled water spray irrigation distribution system.

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Outflow	gallons/day	Measured	Daily
pH	pH Units	Grab	Weekly
Specific Conductance	µmhos/cm	Grab	Weekly
Total Coliform Organisms	MPN/100 ml	Grab	Weekly
Chlorine Residual	mg/l	Grab	Weekly
Settleable Solids	ml/l	Grab	Monthly
Total Suspended Solids	mg/l	Grab	Monthly
BOD ¹	mg/l	Grab	Monthly
Nitrate (NO ₃) as N	mg/l	Grab	Monthly

¹ 5-day, 20°C Biological Oxygen Demand.

OBSERVATIONS

The pump station, plant, storage tank and on-site water recycling area(s) shall be inspected weekly and a summary submitted with the monthly report for the following:

- a. Discharges or overflows from the pump station, plant or holding tank
- b. Seepage from the subsurface disposal trench
- c. Any discharges or spills to the ground surface or surface drainage courses or runoff from spray irrigation to surface water drainage courses.

REPORTING

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner to illustrate clearly the compliance with waste discharge requirements.

Monthly monitoring reports shall be submitted to the Board by the **15th day** of the month following the reporting period.

The results of any monitoring done more frequently than required at the locations specified in the Monitoring and Reporting Program shall be reported to the Board.

The Discharger shall submit an annual report to the Board by **30 January** of each year. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year, as well as a copy of the annual report for the Los Brez's Park drinking water facility. In addition, the Discharger shall discuss the compliance record and corrective actions (taken or planned) that may be needed to bring the discharge into full compliance with the waste discharge requirements.

The Discharger shall implement the above monitoring program on the next reporting date after the effective date of this Order.

Ordered by: _____
GARY M. CARLTON, Executive Officer

28 January 2000

(Date)

INFORMATION SHEET

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Waste Discharge Requirements (WDRs) were first set forth in Order No. 72-261, adopted by the Board on 26 May 1972. The requirements were then revised in Order Nos. 86-114 and 88-148, adopted by the Board on 30 May 1986 and 12 August 1988, respectively. The existing WDRs Order No. 88-148 is being updated to reflect the change in ownership and current State regulations and Board policies.

Windflower Point/Los Brez's Park is a secured residential subdivision at the western end of Sulphur Bank Point on Clear Lake. Approximately 28 homes have been built and 20 vacant lots remain. Only about four of the homes, for a population of approximately 12 persons, are occupied throughout the year.

The entire subdivision discharges approximately 1,600 gpd of wastewater by gravity to a single pump station with two, alternately-operating pumps. Design capacity of the system is 15,000 gpd. The pump station sump is equipped with a float switch and high fluid level alarm system. From the pump station, sewage is pumped 2000 feet through a 3-inch line to an extended aeration package plant situated near the crest of a ridge overlooking the development. Treated effluent from the package plant is pumped to a redwood holding tank prior to discharge to a subsurface seepage trench. Treated effluent may also be discharged from the package plant to a 10-acre hillside open space irrigation system. A chlorination injection point is located at the effluent pump station for use prior to discharge to the irrigation system. To date, neither the chlorination nor the irrigation systems have ever been used and all wastewater disposal has taken place in the subsurface seepage trench.

The beneficial uses of Clear Lake are municipal, industrial, and agricultural supply; recreation; aesthetic enjoyment; ground water recharge; fresh water replenishment; navigation; hydroelectric power generation; preservation and enhancement of fish, wildlife and other aquatic resources.

The beneficial uses of the underlying ground water are municipal, industrial, and agricultural supply.

Surface water drainage from the facility is to Clear Lake.

SKC

28 January 2000